

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 937

BY WAYS AND MEANS COMMITTEE

AN ACT

RELATING TO LOCAL LAND USE PLANNING; AMENDING CHAPTER 65, TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-6541, IDAHO CODE, TO ESTABLISH PROVISIONS FOR THE REGULATION OF DEVELOPMENT ON RELIGIOUS LAND; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 65, Title 67, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 67-6541, Idaho Code, and to read as follows:

67-6541. REGULATION OF DEVELOPMENT ON RELIGIOUS LAND. (1) As used in this section:

(a) "Heavy industrial use" means a storage, processing, or manufacturing use that:

(i) Uses flammable or explosive materials;

(ii) Presents hazardous conditions; or

(iii) Is noxious or offensive due to odors, smoke, noise, fumes, or vibrations.

(b) "Mixed-use" means the use and development of a site consisting of residential and nonresidential uses in which residential uses occupy at least sixty-five percent (65%) of the total square footage of the development.

(c) "Multifamily" means the use and development of a site for three (3) or more dwelling units within one (1) or more buildings, including condominiums.

(d) "Religious land" means land owned by a religious organization or land leased by a religious organization for a term of no less than forty (40) years.

(e) "Religious organization" means a nonprofit religious entity organized primarily for religious purposes, including those qualifying under section 501(c)(3) or section 501(c)(4) of the Internal Revenue Code.

(2) This section shall not apply to any portion of religious land located within one-quarter (1/4) mile of a heavy industrial use, an airport, or a military base.

(3) (a) A city shall permit multifamily and mixed-use development as allowable uses on religious land.

(b) A city shall not require a zoning change, variance, conditional use permit, or other special approval in order to permit such uses on religious land.

(4) For multifamily or mixed-use development on religious land, a city shall not:

1 (a) Restrict building heights at or below three (3) stories but may re-
2 strict building heights above three (3) stories; or

3 (b) Require the conversion of an existing building to exceed the inter-
4 national building code standards otherwise applicable.

5 (5) Nothing in this section shall be construed to prohibit a city from
6 applying generally applicable:

7 (a) Sewer and water access requirements;

8 (b) Stormwater management requirements; or

9 (c) Building codes not otherwise restricted by this section.

10 (6) (a) A city shall approve an application for a multifamily or mixed-
11 use development on religious land if it complies with applicable regu-
12 lations other than those prohibited in subsection (4) of this section.

13 (b) Approval under this section shall be ministerial.

14 (7) Nothing in this section shall be construed to:

15 (a) Allow for the building of homeless shelters;

16 (b) Direct any entity to approve a permit for a homeless shelter; or

17 (c) Infringe on any jurisdiction's ability to regulate or prohibit
18 homeless shelters.

19 (8) Housing developments on religious land provided for in this section
20 shall be subject to regular property tax laws and shall not be eligible for
21 property tax exemptions as provided in section 63-602B, Idaho Code.

22 (9) Nothing in this section shall prohibit a city from enacting regula-
23 tions, standards, or conditions that are less restrictive than the require-
24 ments of this section.

25 (10) The provisions of this section shall apply to any application for
26 development on religious land received by a city on and after July 1, 2026.

27 SECTION 2. An emergency existing therefor, which emergency is hereby
28 declared to exist, this act shall be in full force and effect on and after
29 July 1, 2026.